

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
RAYMOND GUILLORY,

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER
MICHAEL BECKER, Shield No. 117, and POLICE
OFFICERS JOHN DOES NUMBERS ONE THROUGH
TEN,

Index No.:

The Basis of Venue is:
Location of Incident

Defendants.

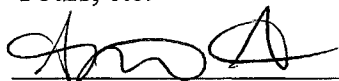
Plaintiff designates Kings
County as the place of trial.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
November 21, 2019

Yours, etc.



Arjeta Albani, Esq.
Caitlin Robin and Associates PLLC
Attorney for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER MICHAEL BECKER, Shield No. 117, Brooklyn South Narcotics,
860A Remsen Avenue, Brooklyn, NY 1123

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
RAYMOND GUILLORY,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
MICHAEL BECKER, Shield No. 117, and POLICE
OFFICERS JOHN DOES NUMBERS ONE THROUGH
TEN,

Defendants.
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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff RAYMOND GUILLORY, by his attorneys, Caitlin Robin & Associates, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On January 16, 2019, at approximately 3:00 p.m., plaintiff Raymond Guillory, while lawfully in the vicinity of 1560 East 102nd Street, Brooklyn, New York, was subject to an unlawful assault and battery and excessive use of force by Defendant Officers. Defendant Becker and Defendant John Doe Police Officers pushed, kicked, and tackled Plaintiff, causing him serious physical injury to his arms, legs, face, and knees. Plaintiff was treated for his injuries at Metropolitan Hospital Center. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully assaulted, battered, and subjected him to excessive force, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff RAYMOND GUILLORY is a resident of the state of New York.

3. POLICE OFFICER MICHAEL BECKER, Shield No. 117, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. On the date of the subject incident POLICE OFFICER MICHAEL BECKER, Shield No. 117, was assigned to Brooklyn South Narcotics.

5. POLICE OFFICER MICHAEL BECKER, Shield No. 117, is being sued in his individual and official capacities.

6. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

7. Police Officers John Does #1-10 are being sued in their individual and official capacities.

8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

9. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

10. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

11. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on July 1, 2019.

12. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On January 16, 2019, at approximately 3:00 p.m., plaintiff was present in the vicinity of 1560 East 102nd Street, Brooklyn, New York, when the defendant police officers unlawfully assaulted Plaintiff without legal justification.

16. Plaintiff was approached by Defendant Becker and approximately nine other John Doe NYPD Officers for an observation drug sale.

17. Defendant Officers grabbed Plaintiff, tackled him, punched him, and kicked him causing physical injuries to Plaintiffs back, ribs, legs, and face.

18. Defendant Officers then dragged Plaintiff, while handcuffed, to an NYPD van, because Plaintiff was unable to walk due to the injuries caused by Defendants.

19. At no time did Plaintiff resist arrest in any way.

20. Plaintiff begged the defendant officers to take him to the hospital, but they refused.

21. Plaintiff was driven around in an NYPD Van for approximately 3 hours while the defendant officers made other drug related arrests.

22. Plaintiff was then transported to the NYPD Precinct, and then central bookings.

23. At central bookings, Plaintiff was arraigned and charged with Criminal Sale of a Controlled Substance, and \$3,000 bail was set.

24. Plaintiff agreed to enter the Odyssey House, a court mandated drug program.

25. Odyssey House allowed Plaintiff to go to Metropolitan Hospital Center to be treated for his injuries.

26. As a result of the Defendant's actions, the Plaintiff was caused to suffer serious physical injury to his chest, spine, arms, legs, face, and knees, conscious pain and suffering, and mental anguish.

27. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, using excessive force, and denying Plaintiff medical treatment.

28. The unlawful assault, battery, and use of excessive force by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Negligence

29. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 28 with the same force and effect as if more fully set forth at length herein.

30. Defendants owed a duty of care to plaintiff.

To the extent defendants claim that the injuries to plaintiff by the defendant police officers was unintentionally caused and that the force used by the defendants against his was unintentional, then the defendants breached that duty of care by injuring his knee.

31. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

32. All of the foregoing occurred without any fault or provocation by plaintiff.

33. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

34. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

35. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

36. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 35 with the same force and effect as if more fully set forth at length herein.

37. The use of excessive force by defendants by, amongst other things, by pushing, kicking, and tackling Plaintiff constituted objectively unreasonable physical seizures of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

38. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

THIRD CAUSE OF ACTION

Assault

39. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

40. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, that such acts caused apprehension of such contact in the plaintiff.

41. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

42. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

43. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

44. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Battery

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner handcuffed kicked Plaintiff's left knee without his consent and pulled his arm back with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

47. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

48. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

49. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

50. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Deliberate Indifference to Medical Needs

51. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. Defendants despite being aware that plaintiff was suffering through severe arm pain while in their custody and required medication and additional treatment from medical professionals, they delayed plaintiff's medical treatment and refused to administer and properly procure, immediate and adequate medical attention.

53. The delay in medical treatment to plaintiff's injuries resulted in permanent additional ongoing anxiety attacks suffered by plaintiff that would have been prevented if plaintiff received treatment in a timely manner.

54. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

55. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

56. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

57. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Usman Ahmed. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

60. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

61. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

63. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

64. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

65. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

66. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

67. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

70. Defendants failed to intervene to prevent the unlawful conduct described herein.

71. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

72. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

73. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

74. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

75. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

76. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff RAYMOND GUILLORY demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
November 21, 2019



Arjeta Albani, Esq.
Caitlin Robin and Associates PLLC
Attorney for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

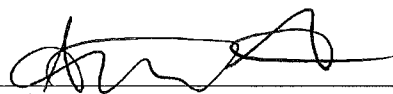
TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER MICHAEL BECKER, Shield No. 117, Brooklyn South Narcotics,
860A Remsen Avenue, Brooklyn, NY 11236

ATTORNEY'S VERIFICATION

Arjeta Albani, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **CAITLIN ROBIN AND ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
November 21, 2019



Arjeta Albani